

VOLUME I, No. 2.

FEBRUARY, 1911

THE REVIEW

A MONTHLY PERIODICAL, PUBLISHED BY THE
NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

TEN CENTS A COPY.

SEVENTY-FIVE CENTS A YEAR

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O. F. Lewis, Secretary
and Editor Review.

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LEGISLATION

These are the months that count. This issue of the REVIEW brings notice of many bills introduced in various states for the betterment of prison conditions and for the welfare of the prisoner. Let prisoners' aid societies show during these next few months that they can work for legislation as well as talk, co-operate with other organizations as well as criticize, get results as well as get out annual reports. Let us not be discouraged because it may often be said that "there is no hope of getting a bill like that through this year." Passing a bill is only one of the steps in the process of educating public sentiment up to the acceptance of a new idea. Education must begin somewhere and sometime. So let us be active in advocating and introducing good legislation, even though we may not get all we want in any one year.

MESSAGE OF THE PRISONERS' AID SOCIETIES

We have one of the most important messages in the field of practical philanthropy. Americans, particularly in the eastern states, are loth to wear their hearts upon their sleeves. So we hesitate sometimes perhaps, to emphasize the message we have. Yet—life is short, and the field is wide. Prisons are still far from solving the problems of the deprivation of liberty, punishment, the protection of society, the rehabilitation of the criminal, and the reduction of crimes.

Therefore, let us not forget the missionary nature of the prisoners' aid society. But, in spreading far and wide the facts regarding the prisoner and the duty of society in his behalf, let us not fall into the error of being fanatical because our field is one of magnitude. Accepting the proposition that the great public wants definite and impressive information, not simply emotional enthusiasm or tirade, let us present honestly and vigorously conditions as they are, and also make constructive suggestions as to their

possible betterment, never forgetting the many difficulties that prison administrators are forced to meet which are not of their own making.

THE REVIEW

This number of the REVIEW begins to illustrate the purpose of the editors. This periodical should be a live news sheet of events and discussions in the prison and prisoners' aid field. So we publish this month a noteworthy article by an Iowa warden with progressive ideas; we print also Mr. Whitin's conclusion about the use of prisoners in road making and about the administrative problems raised by their use.

Several prisoners' aid societies are described by their own representatives. This journal's first purpose is to be a bond of union between these societies. Then follow a number of pages of notes on events in the prison field. We hope the Review deserves the co-operation of all engaged in the prison field. Paraphrasing the Old Farmer's Almanac: "Now is the time to subscribe!"

THE MAN GOING OUT.^{[\[1\]](#)}

By WARDEN J. C. SANDERS, Ft. Madison, Iowa.

¹. Reprinted from “Man for Man,” annual report for 1911 of Central Howard Association.

I do not feel enough can ever be said to eternally damn, as they should be, the vicious, barbarous, degenerating method, which until within comparatively recent years, robbed penology of the right to be classed as a science and converted our prisons and penitentiaries into forcing beds for the germinating and spreading of folly, vice and crime. Society, however, has paid the price for the mistaken views it endorsed, and as the new era is fast sweeping away the old, I have elected to deal with the man produced by it. And mark you, I say MAN, for in Iowa we are trying to make men in our prisons today, not ex-convicts. I want to feel, and I am going to feel, when the day of liberation comes, and a man stands in my office prepared to re-enter the world, that society is about to receive back in the economic value of the man returned, the principal and interest on all it has cost to produce him. But to come at once to my subject, the “MAN GOING OUT.”

If there is one thing a man needs most at such a time it is self-confidence. Its absence marks the weakling and is almost a sure precursor of his certain return to old habits of thought with their accompanying results. Self-confidence rests upon a self-recognition of ability, and this in turn is the outgrowth of experience which has been productive of pre-designed results. If in his prison experience he has been taught that results—all results—come through intelligent, systematic application and has learned to concentrate his efforts and apply himself and thus to realize them, he would be a strange anomaly if he lacked confidence in himself. This is education expressed in its highest term, acquired under that master preceptor—experience. To the man imbued with this spirit, society’s attitude toward him he feels is immaterial, not that he vicariously courts its hostility, but he is possessed of the sublime assurance that his character-force will carry him

through. Accompanying this attitude and as vital to it for him as the sunshine to the rose, is to make of the past a dead and, so far as is possible, a forgotten existence. This I know is contrary to the theory of the value of its lessons, but the man who, like Sinbad, burdens himself with “an old man of the sea,” and thus accepts a self-imposed handicap, possesses but little of the initiative in his character.

The new going out, whom I insist upon holding in view, ought to be a new spirit incarnate in a rebuilt body, born over a second time into a new life, has nothing in common with the dead self buried in the past. If he is not such, he ought not to be released. Why then embalm it in memory and forever travel in the company of a mummy! The funeral urn never pampered to anything but a sickly, morbid sentiment. A constant reviewing of failure is no inspiration to succeed. The most sanguine temperament falls a helpless victim before ravishing regret, and the man or woman, ex-prisoner, allowed to re-enter society unfortified by the philosophical truth that the past must have culminated in the present to make possible a happier, better, greater future, has been badly instructed in the ways of Providence—ever a witness to the wisdom and mercy that rejoiceth more over the lost sheep that is found than over the “Ninety and Nine.”

Next to self-confidence and a stoical attitude toward the past, the important thing to a man going out is “purpose.” I do not mean merely purpose to do right—that, of course, will be a conceded essential. What I do mean is a definite, well considered and reasonable aim—something higher and beyond. God alone knows how many men inspired with the best of intentions have gone forth from our prisons and penitentiaries within the past year, who have failed, are failing, or will fail, simply because they have been led into attempting commercial impossibilities! The responsibility for these failure will rest less on the men themselves than upon us. If there is one duty above all others we owe to society, to the men and to ourselves, it is to see that the man going out has not lost his job—but goes out to go into one. In a large measure this may be accomplished by reconciling the man to the necessity of filling any position which will support him until he can catch his balance and soar up to something higher. Where he is employed the prejudice said to exist against ex-prisoners is very much a popular error. I have observed that most business men, for purely selfish reasons, if for

none higher, recognize and are willing to pay for ability, nor are they given to looking for or picking flaws in a man's past record.

So far I have spoken only of the three character-traits I regard as indispensable to the present and future of the man going out—self-confidence, emancipation from the past, and purpose. It is our duty as missionaries in the field of prison philanthropy to devote our uttermost efforts to secure them to him. But character-traits great and invaluable as they are and primarily of first importance in the work we have assumed, should be supplemented in a material way. No ex-prisoner should be turned loose into society unprovided with sufficient funds to maintain him suitably—not in luxury—if you please, but comfortably, for at least thirty days. And to be explicit and not misunderstood as meaning to convert penal institutions into finishing schools turning out embryonic millionaires at the expense of the tax-payers—I will say that no sum less than \$50.00 is sufficient for such a purpose. And you, dear reader, with your practical experience, will acknowledge that this sum is not an extravagant estimate. If there is one thing the ex-prisoner should be spared during the period immediately following release it is a financial stringency. I appreciate, as do we all, the noble efforts being made by Mrs. Booth, the Central Howard Association, and kindred organizations, and I am fully aware of the miraculous results being achieved by them every day. And while I am grateful to them, and those who so liberally support and second them, I cannot help feeling chagrined at the thought that the great commonwealths of this country should leave a duty so palpably belonging to them to be discharged by philanthropic associations. I believe nothing is productive of greater practical good than to secure a prisoners' compensation law in each state where one is not in operation at present. And, furthermore, I am persuaded that any such general law which received the indorsement of the public would meet with sufficient popular approval to assure its legislative passage in any state where it is introduced. There are those, I have been made aware, who are skeptical as to the policy of providing ex-prisoners with more money than is sufficient to meet immediate requirements. They argue that the pressure of necessity will have a stimulating effect, that the man determined to lead an honest life will, driven by it, go to work at once. But I question the logic of this reasoning. For I cannot conceive of abject poverty under such circumstances as other than demoralizing in its moral effects. And I am sure every man works more cheerfully—more contentedly

and more effectively with a ten or a twenty dollar bill in his pocket than when he feels himself to be absolutely insolvent.

And now permit me to briefly suggest what I regard as an important, indispensable, and in time to be, universally adopted prison innovation, directly affecting the man going out and which can be productive of only beneficial results.

I believe we do the man going out an injury when we permit the transit from prison regime to freedom to be marked simply by the opening and shutting of a gate. It seems to me that this could be largely obviated if what might be termed a “transit squad” was organized, and to which all first offenders would be advanced two weeks prior to discharge. Here the discipline should be relaxed and the daily experiences of the men brought into close touch with those of the outside world. We recognize the utility of such a step already—for we all know how prevalent the custom is of giving near discharge men outside work.

In connection with the transit squad I would advocate complete segregation from the rest of the prison—providing a dormitory ward properly furnished, and connected with its own dining room, where a special dietary should be served. I should advocate even going further than this and permit the wearing of the citizen’s clothing furnished by the state. In this direction the ice has already been broken, for it is a general custom to allow prisoners to draw their outgoing shoes and wear them several weeks before being discharged. During this period I believe it would be wise to permit the men to purchase such personal effects as they will need later—additions to their wardrobe and toilet articles—and in selecting them I should be in favor of taking the men on shopping expeditions—not in prison garb. We are all familiar with the temptations besetting men going out—and their attraction would be greatly lessened by a less precipitous exit from prison and entrance into society than that now in vogue. Too often the last thing a man gets on leaving prison is the “ice-eye” of a turnkey, immune to any sentiment other than that arising from the expectation that his coming back is only a question of time.

I have often wondered whether we fully realize that in the experience of every man there is always the “middle man.” By the “middle man” I mean the character taken after its evolution from the innocent years of early life

and out of which the last state of the man will evolve. The man when received at a penal institution is invariably the “middle man.” If we realize this, and in connection therewith that character remains plastic, despite the old adage that “you can’t teach an old dog new tricks,” and we conscientiously endeavor to secure the adoption of regulations designed with the idea in view that we are dealing with human beings, the “man going out” is an entirely new fellow from the man we received—while our prisons will become vast catacombs, the eternal resting place for the shade of the “middle man.”

MAKING ROADS THROUGH PRISON LABOR

Dr. E. Stagg Whitin, General Secretary, National Committee on Prison Labor.

(By Dr. E. Stagg Whitin, General Secretary, National Committee on Prison Labor).

“Open up your jails, penitentiaries and prisons!” cry the good roads associations throughout the country—“a solution is at hand for your most difficult problem. Bad men on bad roads make good roads, while good roads make good men.”

“Good roads and good men” has become a slogan and no topic of prison news today is more widely discussed in the press from coast to coast than this—the employment of convicts in public road building.

Convict road making is a pressing question before the present sessions of legislatures, county supervisors and boards of control. Members are hesitating as to what answer to make and what arguments pro or con to bring forth. The literature on the subject is abundant, but in the suggestions there is little that is new. That thirty-three states had laws on their statute books in 1905 permitting the employment of convicts on state and county roads shows that a solution of the problem does not necessarily lie in legislation but in its administration. The various forms which these laws take demonstrate the fact that there is as yet no satisfactory or uniform law. The many different experiments going on today appear to have grown out of local needs and conditions rather than out of any generally accepted theory of what is right from the standpoint of penology. To solve satisfactorily the difficult problem involved, or even to suggest its proper solution, would require long research and experimentation, but perhaps it may be timely to point out some of the difficulties which must be encountered wherever convict road making is tried.

The theory that convict labor is a proper source of exploitation either by a lessee through his peonage, a contractor through his cheap contract, or a co-ordinate department of a state government through its subtle bookkeeping, is one that is untenable from any point of view. Road making is a legitimate use of state funds and is of practical benefit to all citizens by reducing the cost of transportation of the products of the farms to the great markets; therefore anything that will expedite the building of good roads is for the common welfare. It is on this basis that it is urged that the labor of convicts be used for this purpose. The state has a right to its use and under certain conditions it would greatly reduce the cost of production and tend to a more rapid development of good roads projects.

Still, we are face to face with a condition whereby the state directs its prison department to allow its highway department to have the labor of the convicts at little or no cost to the highway department and consequently at a figure much below that at which free labor might be induced to seek employment in road building. The claim that free labor cannot be had at any wage for work on roads in certain communities is generally advanced as a justification for this, but the large employment agencies of the country as well as the student of economics will soon show conclusively that the difficulty lies not in securing labor at any price, but in reluctance to give an adequate wage which will induce labor to come into the work.

The value of the convict's labor on the roads is the same as the value of his labor in the prison factory—the wage at which free labor can be secured to perform the same work. Shall the prison department turn over gratis its convicts to the highway department—this is the question. If it does, it is giving to the highway department exactly that amount of money for which the highway department could hire free labor. It makes little difference to the taxpayers which he is taxed to maintain, prisons or roads. Prisons are deemed a necessity and the community is afraid to get along without them. Bad roads are a habit and the community is accustomed to get along with them. But with a single tax maintaining prisons and developing highways, which community could hesitate?

A much more legitimate argument, but one less often advanced, is the healthful, wholesome environment thrown around the convict while at work in road building. The experience of the men who developed the road work in Colorado shows that this is an advantageous way of employing able-

bodied convicts—of transforming the sallow ghost-like prisoner, fresh from the prison pen, into a rosy, happy specimen of humanity. Under God's own sky, with the fresh air of heaven, free from shackles and living on his honor with few guards to do more than supervise, the prisoner is surrounded by the best environment and governed under a method which is sane. While it remains to be proved how long this method will be a success and whether the experience of Colorado can be duplicated both north and south, the work at Kalamazoo, Mich., at Richmond, Va., and other places tends to raise our hope. These practical arguments should have weight.

A movement equally important with that of good roads is passing over the country. Efficiency is demanded in the management of prisons, with a wage for the convict which will benefit those dependent on him. To build up an efficient organization of prison industries is a task of no mean magnitude on an inadequate salary and hampered by red-tape of officialdom and incompetency of subordinates. The man at the head of prison departments needs sympathetic encouragement. To place upon him the burden of securing large appropriations for maintenance of his institution while the labor of his charges is handed over to others for exploitation is destructive of all ambition for the attainment of efficiency.

So it is that the movements of the day tend to clash and we are left with a dilemma. Is there a demand on the part of the highway and road people which is legitimate, which will open this seemingly large opportunity for the convict and still not offer it on a basis of exploitation? This conflict is full of interest to the student of the subject.

IN THE PRISONERS' AID FIELD

THE PENNSYLVANIA PRISON SOCIETY

Early in the year 1776 a society was organized by some benevolent citizens of Philadelphia under the name "The Philadelphia Society for Assisting Distressed Prisoners." After a career of nineteen months the society was dissolved on account of difficulties arising during the War for Independence.

In 1787 philanthropic citizens constituted themselves "The Philadelphia Society for Alleviating the Miseries of Public Prisons." From that time until the present this society has been actively engaged in securing measures to improve the conditions of prisons, and also in earnest endeavors to reform criminals, and so far as known it is the oldest prison society in continued existence in the world. The name of the society was legally changed in 1886 to "The Pennsylvania Prison Society."

The present president, Joshua L. Baily, whose membership dates from 1851, has been connected with the society longer than any other living member.

In the first year of the existence of the society about 150 gentlemen of Philadelphia were connected with the organization. Their object was to discover "such degree and modes of punishment" as might restore our "fellow-creatures to virtue and happiness."

An annuity of the value of about \$70, the donation of John Dickinson, was the only permanent revenue of the new society.

In 1788, the society addressed the following letter to John Howard, the great apostle in the work of ameliorating the condition of prisons: "The Society heartily concurs with the friends of humanity in Europe in expressing their obligation to you for having rendered the miserable tenants

of prisons the objects of more general attention and compassion, and for having pointed out some of the means not only of alleviating their miseries, but of preventing those crimes and misfortunes which are the cause of them." A year or two later John Howard left on record an expression of appreciation of the work of the Philadelphia Society. The following sentiment was found among his papers: "Should the plan take place during my life of establishing a permanent charity under some such title as that at Philadelphia, viz: 'a society for alleviating the miseries of public prisons,' I would most readily stand at the bottom of a page for five hundred pounds."

The organizers of the society had a tremendous task before them, and they went at their work with energetic diligence. Very little effort had ever been made to carry out William Penn's injunction that "all prisons should be considered workhouses for the employment of criminals and of the idle and vicious." There was an ill-constructed prison at the corner of High and Third Streets with subterranean dungeons for those under sentence of death. At least half a dozen crimes were punishable by death. "In one common herd were kept by day and night prisoners of all ages, colors and sexes. There was no separation of the most flagrant felon from the prisoner held on suspicion for some trifling misdemeanor. There was no separation of the fraudulent swindler from the unfortunate, and often estimable, debtor."

The society early resolved that two leading elements of the desired reformation were to find employment for the inmates and to interdict the use of intoxicants. They also insisted that there must be a segregation, not only of the sexes, but also that there must be an individual separation in order that the penal institutions should not become "schools for crime."

From the first the society has advocated separate confinement and individual treatment, but has not stood for absolutely solitary imprisonment. There is no objection to work being done in groups, provided the prisoners are under direct supervision of the proper officials. Visits from the officers, from ministers, from all properly concerned persons, have been encouraged. Visitations by members of the Prison Society began under peculiar difficulties, as it is on record that the keeper, with loaded cannon, for the purpose of maintaining order, allowed the prisoners to assemble to hear the preaching of the gospel, but the beneficial effect of the visits were soon officially recognized, and have been maintained with great regularity to the present day, the Acting Committee in 1909 having reported 10,951 visits to

prisoners. In the year 1829, when the Eastern Penitentiary, whose plan and management at that time represented the most advanced ideas in prison construction and discipline was built, the members of the Acting Committee of the Society were, by enactment of the State Legislature, constituted "Official Visitors" of prisons.

In 1794 the society succeeded in securing the abolition of the exaction of fees by the jailers as a condition of release, and a competent salary was authorized to be paid to the prison officials. About the same time it was decreed that capital punishment should be inflicted only for the crime of murder. Barbarous methods of punishment, such as the pillory, branding with hot irons, the whipping post, were soon dispensed with as reformatory measures.

In 1844 the society issued the first number of "The Journal of Prison Discipline and Philanthropy." At first this periodical was published quarterly, but for many years it has been an annual. In the columns of this Journal every phase of prison reform, every measure affecting the management of prisons, every act of penal legislation for nearly seventy years, has received attention.

For about fifty years a special agent has been employed who devotes his time to sympathetic care of prisoners from the time they arrive until they have received their discharge. Legal aid is found for those whose cases seem to require it, and where there are mitigating circumstances the charges are often withdrawn and so the accused is restored where often his services are needed. Attention is given to their physical needs at the time of their discharge and effort is made to provide them with employment.

The Commutation Act, whereby the sentence of prisoners could be relatively shortened for good behavior, was first passed in 1861, for the passage of which act the members of the society had worked for years. In recent years some members of the society have made a thorough study of methods of dealing with criminals in the various states of the Union, and in connection with other interested parties have been instrumental in securing the passage of a law in 1909, which provides for probation for adult offenders, and also for parole for certain classes of offenders. These provisions had for many years applied to juvenile criminals, but before 1909 had no reference to the sentence on adults. The State of Pennsylvania

has been quite cautious in adopting some principles of what may be called "The New Penology," and it is too early at the present time to make any report on the effect in Pennsylvania of this recent legislation. The society is giving close and sympathetic attention to the practical enforcement of these regulations with the hope that the beneficial effects, reported elsewhere, may here be observed, and that the errors of this system, which have been noted rather conspicuously in the press, may be reduced to a minimum in our State.—*From an article by Albert H. Votaw, secretary of the Pennsylvania Prison Society, in supplement to No. 49 of The Journal of Prison Discipline and Philanthropy.*

The following report has been made by Frederick J. Pooley, general agent of the Pennsylvania Prison Society, concerning the recent activities of the general agent: At the close of the year, December 31, 1908, there were 1,480 prisoners confined within the walls of the Eastern Penitentiary. At the close of the year, December 31, 1909, there were 1,527, an increase of 47. Of this number 30 are life prisoners. There are 38 female prisoners. During the year 1909 there were 520 prisoners discharged. Of this number 405 were furnished with suits or parts of clothing and with tools, lodging, etc., by the Pennsylvania Prison Society through their general agent, and in addition to this part of the work many were taken to the early morning trains and conducted safely out of the city and beyond the reach of evil companions who often wait for the discharged prisoners at the prison gate for the purpose of leading them back to a life of crime. In addition to the work at the Eastern Penitentiary the general agent has a large field of work at Moyamensing and Holmesburg.

I believe the lesson of temperance that has been taught to the younger generation is commencing to bear fruit, and I look for fewer commitments for drunkenness in the future than in the past. More than 500 discharged prisoners from the County Prison were assisted with railroad tickets, board, lodging, room rent, tools, etc.

NEW YORK PRISON ASSOCIATION IN 1910

The New York Tribune on January 23rd stated: The Prison Association of New York during 1910 found work for 362 released prisoners. At the annual meeting held last Thursday O. F. Lewis, general secretary, reported that 1,237 former prisoners had been in charge of the parole bureau during the year, and that the men and women on probation to the association from the Court of General Sessions would bring the total number of persons helped to 1,700.

Managers of the prisons and reformatories know the Prison Association will take at any time as many men on parole as may be assigned to the association. These men must report once a month, and they are also visited by the parole staff at their work and at their homes.

All prisoners eligible for parole must obtain an offer of employment, so their purpose in writing to the association is obvious.

The general secretary pointed out that during the year seventy-six men had been paroled from the state prisons to the association. It was necessary to return to state prison only four men, and the others were all doing well.

Ten thousand calls a year were made at the office of the Prison Association, most of them from men who had "done time." The association's staff made over 3,600 visits in 1910 in behalf of men on parole and on probation, and gave nearly 3,500 meals and 1,968 lodgings. The association spent \$3,200 in cash relief, including lodgings and meals. Many friends of the association gave clothing, magazines and books, and 344 garments were received by needy prisoners during the year.

Smith Ely contributed \$27,500 to the endowment fund, and an equivalent amount was raised by the association last year, but the income will not be available for six months, and an appeal was made for financial help because of greatly increased activity.

The work for dependent families of prisoners was placed in charge of a special committee, with the exclusive service of one visitor. The problem of mental defectiveness among prisoners received much attention from the association, and a special committee on defective delinquents was appointed at the last meeting, which comprised twenty-five specialists in study and care of delinquents. A closely affiliated body of forty business and professional men, calling themselves the Barrows League, was

organized to assist the Prison Association through work for the welfare of persons released from prisons or reformatory institutions.

A comprehensive study of the lives of seven hundred present and former inmates of Elmira Reformatory was conducted by the association during 1910, through the financial support of the Sage Foundation. It was expected that this study would be published this year.

THE MASSACHUSETTS SOCIETY FOR AIDING DISCHARGED CONVICTS

In 1846 the Boston Society for Aiding Discharged Convicts was organized for the purpose which its name indicates. At that time there were 276 prisoners confined in the state prison, while on Jan. 1, 1911, there were 876 serving sentences there.

In 1867 the organization was incorporated, and the name changed to the Massachusetts Society for Aiding Discharged Convicts. Upon the formation of the society the state agent for discharged convicts was employed for its work, which was to be carried on along the same lines as that contemplated by the state.

The advantages to the society from its co-operation with the state in this work are many. Perhaps the greatest is the fact that by this arrangement the records of all the commitments and discharges to and from all the prisons of the commonwealth, which are in the office of the prison commissioners, are open to the inspection of the agent at all times. Here the story of an applicant for aid can be verified or disproved immediately. In addition to the criminal records are many others, going more fully into the personal history and home conditions of those who have been in prison; all of this information is useful and necessary in dealing with the ex-prisoner. The saving in administration expenses, rent, and other items, leaves more funds available for the prime object of the society, i.e., help to the prisoner.

During the year ending Nov. 30, 1910, this society has helped four hundred and sixty-three men, most of whom had served terms in the jails, houses of correction, and on the state farm. The assistance rendered has been generally in the form of transportation, meals and lodgings, room rent,

clothing, tools, taking property from pawn shops, medicines, spectacles, etc. There has been expended during the year about \$1,700.

Notwithstanding the increase of population in Massachusetts there were 213 fewer prisoners on Oct. 1, 1910 than on the same date in 1909.

THE MINNESOTA DIVISION OF THE SOCIETY FOR THE FRIENDLESS

The Minnesota Division of the Society for the Friendless is a division of the National Society of the same name. It has been doing active work in the state of Minnesota since January 1st, 1909, when Rev. James Parsons came to the state as superintendent, under appointment of the national society. The work was carried forward for the first fifteen months under the direction of the national society. On April 8th, 1910, the Minnesota Division was formally organized.

Its special motto is "education for the prevention of crime, and help for the prisoner." It aims to arouse a more enlightened and humane sentiment toward the treatment of discharged prisoners, awaken a new interest in the improvement of laws, and show the forces that are at work to make criminals. Along relief lines it aims to do everything possible for the men while in prison, to find employment for them when they are discharged or paroled, and in cases where employment cannot be secured for them at once to furnish them with a temporary lodging place. It also gives such aftercare as each case seems to need.

During the year 1910 one hundred and six jail visits were made, over 600 prisoners were interviewed, 45 persons were helped to work, and 75 were assisted in other ways. The machinery of the organization has been gotten into such working order that the society is in a position to handle a larger work. During the next year the organization hopes to aid in securing the passages of a number of beneficial laws, among them being one providing for an up-to-date indeterminate sentence.

During 1910 the following work has been done, among other activities of the society: Church addresses, 106; persons reached in churches, 16,155; school addresses, 56; persons reached in school audiences, 8,780; miscellaneous addresses, 19; persons in these gatherings, 4,445; miles

traveled, 22,673; calls made for various purposes, 1,491; letters written, 599; jail visits, 106; prisoners interviewed, 600; discharged prisoners helped to work, 45; assisted in other ways, 600.

NEW JERSEY STATE CHARITIES AID AND PRISON REFORM ASSOCIATION

The current number of the New Jersey Review of Charities and Correction brings interesting information regarding the re-organization of the association and the appointment of Joseph P. Byers, formerly superintendent of the House of Refuge at Randall's Island, New York City, as general secretary. The program of the present year includes the organization of county branches in all counties of New Jersey, there being at present but seven county committees: the visitation of all the institutions of the state by the general secretary; the regular publication of the New Jersey Review; the development of the standing committees, and the extension of the membership and influence of the association. Hugh F. Fox, writing in the Review, says: "Mr. Byers has made his mark in all of his undertakings in the past, and his practical experience and wide knowledge qualify him peculiarly for the supervisory and advisory duties which he has now undertaken."

The annual report of the association's general secretary calls attention to the county jail problem, the opposition in New Jersey to the present contract system of labor and the possibilities of a profitable introduction of the state use system, the desirability of introducing winter work into the almshouses of the state to discourage the presence of vagrants, and the great need of a woman's reformatory.

COLORADO PRISON ASSOCIATION GROWING

The Colorado State Prison association, says the Denver News, has become during the last year an organization not only to help prisoners who have a criminal record to get work and to reform, but to keep others from gaining a criminal record.

Instead of sending young first offenders to jail this year some Denver judges have tried the plan of releasing them to the Colorado Prison

association. In every case the offenders have been grateful, were helped by friends and relatives to get work and are now living useful lives. The idea is new to Colorado.

W. E. Collett, general secretary of the association, states in his report for 1910, that the association helped 534 persons as against 324 the year before.

For the first time Secretary Collett received applications from men of the professions, lawyers, physicians, and from bookkeepers and clerks who have fallen into trouble.

The association procured employment for 355, meals for 344, lodging for 227, clothing for 105, transportation for 70 and tools, loans and medical aid for 45. The total number of lodgings given was 1,226 and the total number of meals, 2,882.

Nine were given courses in a Correspondence school. The cost per prisoner to the association was \$9.75.

GEORGIA'S NEW SECRETARY

Robert B. McCord has been recently made secretary of the Prison Association of Georgia, with headquarters at 404 Gould building, Atlanta. Concerning the new incumbent, the *Atlanta Georgian* says:

“Mr. McCord is a native Georgian and has spent years in specializing on the character of work in which he will now be engaged. After a preliminary course at the University of Florida, he attended Yale university, from which he graduated in 1908. After his course at Yale he attended the University of Chicago. Mr. McCord was closely associated with Dr. C. R. Henderson for two years in research work.

“In outlining the work of which he will have charge, Mr. McCord said:

‘The prison associations of the several states are not organized on the same plan, or for doing the same phases of the work in every case. The Prison Association of Georgia is not modeled after any of them, yet in the work outlined it resembles more nearly the Prison Association of New York.

““The Prison Association will investigate and attempt to throw light upon the causes that underlie crime of the various kinds in this state. It will collect information from officials and suggestions from men of experience in Georgia, methods employed in other states and countries, and it will publish these in various ways to the people of the state. It will aid in introducing and extending methods of preventing crime and reforming offenders. It will endeavor to organize such influence as will secure the building and equipping of proper institutions for those offenders who can not be dealt with more profitably and wisely by methods of probation and parole. It will direct its efforts to securing the proper equipment and regular inspection of jails and prisons of all kinds. It will in time organize such aid as may enable the discharged prisoner to establish himself again in the confidence of the people instead his possessing that dangerous state of mind which characterizes one who feels himself an outcast of society’.”

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

What Can Be Done With the Drunkard?—In many states the approach of the legislative season has brought forth bills providing for a more rational treatment of the drunkard. A commission appointed by Governor Warner of Michigan to make a study of minor criminal offenses will recommend to the legislature at the 1911 session the establishment of an inebriates' farm where the drunkard, habitual or occasional, may work off the habit under the influence of helpful and healthful surroundings. The commission, all of whose members are lawyers, have found that petty crime is increasing in Michigan at the rate of ten per cent a year, while the population is increasing at the rate of but four per cent. The report emphasizes that the present Michigan methods of dealing with petty offenders are not reformatory.

In Lewiston and Auburn, Maine, citizens are establishing a refuge for discharged prisoners who have served terms for vagrancy or intoxication. The Auburn Reform League hopes thus to find "a place where these men can be helped to a fresh start."

In Massachusetts, Warren F. Spalding, the secretary of the Massachusetts Prison Association, discussing the treatment of drunkenness before the commission which has been investigating the increase of prisoners and paupers in the Bay State, said recently: "Massachusetts' system of dealing with the question is not good. It is sending thousands of persons to the houses of correction each year and then releasing them after short periods without having helped them." "A drunk," he said, "needs air, sunshine and outdoor work. He should not be in a cell 16 out of the 24 hours. These cells are not free from germs. What does Massachusetts do with her drunks? After sending each one to the House of Correction for a number of times, he

is sent to the state farm at Bridgewater, where he receives the outdoor treatment he needed in the first place. Massachusetts should establish from one to six institutions where drunks and criminals through drunkenness can be given outdoor treatment.”

It is reported that a bill is to be introduced into the Indiana legislature providing for the sending of convicted drunkards to the county infirmary which is reported to be able to work the men on the farm at a cost only one-fourth of that entailed by keeping them at the jail.

A member of the State Commission in Lunacy of New York recently stated that 28 per cent of insanity in the state hospitals of New York is directly traceable to inebriety or the use of alcohol.

Winter and the Vagrant.—New York City has been registering at its half-million dollar new free lodging house a record-breaking attendance this winter of the out-of-works. On January 15th the department of public charities lodged 982 homeless persons at the city lodging house and an overflow of 286 were lodged on a covered dock owned by the department. “In my fifteen years of experience,” said the superintendent of the lodging house, “I have never seen so many men come here with clean shirts and collars, and with neat clothes. They are men who have been working on the railroads and on the aqueduct and are now laid off for the winter.” The city lodging house has no work-test and the magistrates have largely discontinued their former tendency to commit frequent repeaters at the lodging house to the city workhouse. In the first sixteen days of 1910 the city cared for 5,841 persons at the lodging house; for the first sixteen days of 1911 the attendance was 13,197, an astounding increase of approximately 8,000 or more than 125 per cent.

Meanwhile cities all over the land are complaining of the swarms of tramps and vagrants making claims, almost with the assurance of vested rights, upon the hospitality of the towns or the individual citizens. Minneapolis has recently attracted attention through its new city lodging house, where free food, free bath and nightshirt are a part of the regulations, as well as the fumigation of the guest’s clothing during the night. The conditions under which homeless men were formerly lodged by the police

in Minneapolis were so wretched that the new municipal lodging house has received a welcome from press and public.

One year's work of the wayfarer's lodge of the federation of charities in Toledo, O., is worth notice. During 1910, 3,896 men were taken care of, 8,465 beds being given. On an average the men stopped at the lodge two and one-half nights, 18,773 meals being given in 1910. Paid employment was found for 962 men, most of the positions being at manual labor. Seventy-three per cent of the men were American born. Over seventy per cent were in the best period of life, between twenty and forty years of age. Nearly fifty per cent of the men were common laborers. All the men were examined by medical students of Toledo University, and if in need of care were referred to a dispensary or other sources. About one man in five was found to need medical attention. Over forty per cent of the men were reported as having, or as having had, venereal disease.

A Court to "Patch Up" Quarrels.—The domestic relations court of Buffalo supervised through its probation officer in 1910 the distribution of \$40,587 in non-support cases. This was the first court of this nature to be established. Recently New York and Boston have followed suit. Probation did not prove successful in every case, but the percentage of success "warrants enthusiasm," according to the probation officer of the court. Three out of every four persons are reported benefited by the court.

A Prison Twine Plant in Wisconsin.—On January 13th a bill was introduced into the Wisconsin senate providing for an appropriation of \$400,000 as a fund to be used in operating a binder twine plant at the state prison at Waupun, \$200,000 to be available May 1st, 1911, and the remainder May 1st, 1912.

A bill will be introduced, it is reported, into the Ohio legislature providing for the sterilization of criminals and insane.

Points in Prison Reform.—The Chicago Record-Herald of January 17th, says editorially: A Harvard professor advocates systematic experimentation on prisoners in state institutions with the different chemical poisons used in food preservatives. Such doings, he thinks, would be mild and humane as compared with those which are constantly being tried on the non-criminal public by the manufacturers of food products.

The professor probably has in mind the experiments conducted by Dr. Wiley on government employees at Washington. But submission to such treatment was voluntary, and the work was under competent supervision. That such favorable auspices could be guaranteed in an average prison is open to doubt.

One finds a spirit more human than that of the Harvard professor in the warden of the state prison at Walla Walla, Wash. The latter declares that the striped suit and the lock step are undesirable relics of an outlived past. He has put his charges into plain gray clothes, with no distinguishing mark beyond the prison number, and has abolished the lock step altogether. If those two antiquated features represented affronts to the dignity of human nature, the compulsory consumption of poison might reasonably be held to represent still another. Its introduction might lay the base of a new error and abuse, which itself would have to be abolished in turn.

Life Prisoners Studied.—A thorough study of the subject of life prisoners has been made by Warden Henry Town, of Waupun, Wis. It is interesting to note the kindly feeling held generally by prison officials toward the “lifer.” Experience proves that the average character of life prisoners is higher than the short-term men, and fewer return again to crime, when given their liberty. This fact has increased the sentiment favorable to paroling life prisoners after they have served a reasonable period. The great majority of officials have expressed themselves as favorable to laws of this kind, and several states have already adopted them with satisfactory results.

A Jail Catechism.—The following recommendations, made by Commissioner Frank Wade, of the New York Commission on Prisons, after

an inspection of the Orleans County jail, may have a general applicability to the jails of the county:

“That more beds and mattresses be placed in the lockup; that tramps and loafers, not under arrest, be not allowed to mingle with the prisoners detained for trial; that a jail yard be provided at the county jail, and that work be provided for time prisoners; that all the beds in the jail be equipped with new mattresses; that the walls of the corridors and cells be repainted and that the corridors and cells be kept clean; that the bed clothing be regularly washed and kept clean, in which event sheets and pillow cases should be washed; that a steel ceiling be placed over the wooden joists in the kitchen; that there be light in every cell and that there be a new lock on every floor which cannot be reached or tampered with by the prisoners.”

A Court On Prison Architecture.—In the course of a decision denying an injunction brought to hold up the contract for a new state prison, Justice Betts of the New York Supreme Court, recently uttered the following dictum dealing with the psychological aspects of prison architecture:

“It appears that a substantial change in plans was made, increasing the cost of the new prison from \$2,000,000 to \$2,200,000. This was solely in an attempt to beautify and adorn the exterior of the building. The commission, with the sanction of the legislature, is to spend \$200,000 in seeking the unattainable. A prison known to be such is hideous and ugly. It can be viewed by two classes of people only, those who are inmates and those who are out. The inmates are not proud of their environments, however ornate, and no amount of embellishment can make it attractive to outsiders.”

A state training school for boys under 18 has just been opened at Monroe, Alabama. It has been in preparation for several years.

Federal Prisoners Paroled Without Publicity.—In accordance with the decision of the attorney general of the United States and the chairman of the federal board, prisoners who have won their paroles from federal prisons will hereafter be released without publicity. Thus they can go back into society unburdened with the disadvantage of readvertised notoriety.

Commenting editorially on this change, the Cincinnati (Ohio) *Enquirer* says:

“This is in keeping with modern progress in the treatment of criminals. When a man is tried and sentenced for a crime, full publicity is given to that fact, and when he arrives at the penitentiary that fact also is announced to the public. After that man has served the term to which he was sentenced, or when he has served a part of it and is released on parole, he has paid his obligation to society for his violation of law. He has a right to demand that he be permitted to re-enter the world unhandicapped by the renewed publication of the disgrace of his imprisonment. * * * * The attention of the Ohio prison managers is called to this progressive action on the part of the federal government. Its helpfulness would be just as important in state as in national criminal affairs.”

Organized Labor Opposes “THIRD DEGREE.”—A dispatch from New Haven, Conn., states that organized labor in the various states is called upon to exert its influence for legislation forbidding the police “third degree” to get confessions from prisoners in a letter sent out from the National Headquarters of the American Federation of Labor at Washington.

The letter, which is signed by Samuel Gompers, describes the practice as having no warrant for its existence “except the brute power of barbarism and the tradition derived therefrom,” and declares that “its practice on the part of the police is usurpation that must be stopped.”

Former Lieutenant-Governor E. H. Harper has been elected president of the Colorado Prison Association, which plans to draft a number of bills for the legislative session.

Penal Farm for Indiana.—A bill providing for the establishment of a state penal farm will be introduced into the Indiana legislature.

The bill provides that the location of the farm and the purchase of the land for it shall be made by the board of trustees of the state prison, with the approval of the governor. The location shall be determined by the

advantages offered in providing work for the inmates. The labor for erecting the buildings shall be furnished by prisoners transferred from the state prison and reformatory. The farm shall be in charge of a board of four trustees appointed by the governor.

All male delinquents, who are above the age of commitments to the Indiana Boys' School, who have been convicted of the violation of any state law or city ordinance, the punishment for which now consists of confinement in a county jail or workhouse, may be sent to the farm. Where the imprisonment shall not be more than thirty days it is left to the discretion of the trial court as to whether the prisoner shall be sent to the county jail or to the penal farm.

Upon the recommendation of the boards of trustees of the Indiana state prison and the state reformatory the governor may order transferred from these institutions to the farms such prisoners as in the opinion of the board would be benefited thereby. The prisoners at the proposed institutions shall be employed at work in or about the building and farm. For the purpose of equipping the farm appropriations shall be made by the legislature. It is estimated the appropriation will require \$200 a year for each prisoner.

A Women's Prison for Ohio?—Members of the Ohio joint legislative committee appointed to recommend what the state should do about building a women's prison, have decided to recommend that a joint reformatory and prison for women be built under a management separate from the penitentiary. The board of managers of the penitentiary will be asked to abandon the project of erecting the woman's prison near the institution for men.

Probation in Connecticut.—The Connecticut Prison Association shows that the number of cases placed on probation during the year ended September 30, 1910, was as follows: Men, 1,613; women, 126; boys, 809; girls, 49. Those who observed their terms of probation and were released were: Men, 1,077; women, 117; boys, 677; girls, 43. Those who violated the conditions and were rearrested were: Men, 214; women, 12; boys, 52; girls, 7; while 92 men, 7 women, 17 boys and 4 girls escaped from the

jurisdiction of the court. There were remaining on probation at the close of the fiscal year 858 men, 59 women, 325 boys and 26 girls, while the cases of 326 men, 18 women, 90 boys and 50 girls were investigated and settled out of court.

The amount of probationers' wages collected and expended for their families was \$26,919.75. The amount of fines and costs collected from them amounted to \$10,791.44.

President Thorpe of the Massachusetts Prison Association, in support of his recommendation of state control of all penal institutions, which he suggested had been smiled upon taxation, and a governor or two, said that criminals violate the welfare of the state, not of the county, and that about the only opposition to his project comes from county commissioners. He called it wasteful for counties to build new prisons, where they house both serious and petty criminals, and suggested that the state should erect one in the country for classified lighter offenders.

Following the wide publication of an article from the pen of Sir Evelyn Ruggles-Brise, K. C. B., dealing with prison conditions in this country, a statement condemning American prisons and prison systems was attributed to him. In a recent letter to Amos W. Butler, Secretary of the Indiana State Board of Charities, Mr. Ruggles-Brise, who attended the International Prison Congress at Washington, and who is chairman of the prison commission of England, stated that his criticism referred only to the jail system in this country.

Three Reforms Urged in Maine.—Several reforms are being strenuously urged upon the Maine legislature by the prison association of that state. A farm for inebriates in Cumberland county, a reformatory for women, and a system of juvenile courts are those propositions attracting the most attention from the press and the public. Civic clubs, men's clubs and church organizations are being drawn into the effort to get the necessary bills passed by the legislature. The proposed farm for inebriates will provide physical and mental training for the inmates, and the bill authorizing it fixes minimum and maximum sentences of three months and one year

respectively. The bill providing for a women's reformatory asks for an appropriation of \$30,000 for an institution on the cottage plan, to which commitment will be on the indeterminate sentence plan. The proposed juvenile court bill was spoken of as follows by Judge Ben B. Lindsey, of Denver, Colorado:

“This bill is the best measure yet proposed to protect and correct helpless, neglected or offending children.”

In connection with what promises to be a state-wide investigation of several departments in New York which come under the control of the governor, it is interesting to note that Governor Dix declares his intention to make a personal inspection of the prisons, and a thorough study of their affairs. Cornelius V. Collins, Superintendent of Prisons, has stated publicly that he will welcome any investigation of affairs in the Prison Department.

A bill to abolish the different prison boards and establish a new board to control all state prisons and perform the functions of the present advisory board in the matter of pardons, is in preparation by Rep. Robert Y. Ogg, of Detroit, Michigan. Both parties declared for such a bill in their state platforms.

A stop has been put in South Boston, Mass., to the practice of sending juvenile offenders from the detention station to the courthouse in the same vans with adult prisoners.

A bill to compel the sending of prisoners under 18 years of age to the state reformatory, and to permit the sending of first offenders, except those guilty of serious crimes, to the same place, and to prevent the sending of prisoners over 30 years of age to the reformatory, is being urged upon the legislature in Colorado. It is argued that some of the judges think the reformatory merely a branch of the penitentiary.

On the ground that imprisonment in the city jail for petty crimes brings punishment on the family of the culprit no less than on the culprit himself, Mayor Pratt, of Spokane, Wash., is urging the establishment of a work farm where petty criminals can be given employment that will contribute to the support of their families. Mayor Pratt is also said to favor an institution where the destitute can find employment.

A bill for the establishment of a reformatory for first offenders, now before the legislature of California, is said to have the backing of many organizations interested in prison reform. The bill provides for an institution to which prisoners convicted of felony for the first time may be sent for confinement, instruction and discipline, with the object of fitting them for self-support on release. The sentence of such prisoners is to be indeterminate.

A plan for sharing profits with the prisoners of the Rhode Island state prison at Howard, R. I., has been proposed by Warden James F. McCusker, and is now in the hands of a committee charged with reporting upon it. It provides that in each department of the prison those who have worked steadily for the preceding six months shall share in a monthly distribution of the earnings of that department over and above a stated minimum amount.

It is expected that legislature of Tennessee will make an appropriation at this session for a reformatory where boys convicted of crime may be kept separate from hardened criminals. The state has already purchased a farm five miles from Nashville on which to erect such an institution.

A DIGEST OF EVENTS IN THE PRISON FIELD

To all who are Interested Prisoners' Aid Work and the Prison Field:

Last October, at the meeting of the American Prison Association, representatives of a number of the leading prisoners' aid societies of the United States voted to organize a National Prisoners' Aid Association, to promote closer co-operation between the prisoners' aid societies of this country.

These societies have decided to publish a monthly "Review" of events in the prison field. The first number of the REVIEW appeared about the middle of January. It contained an article by Warren F. Spaulding (Massachusetts) on the International Prison Congress, brief histories of three prisoners' aid societies, a list of prisoners' aid societies, several pages of "Events in Brief" containing up-to-date facts in the prison field from all parts of the country, and an advertisement.

The REVIEW will be published once a month, in New York. It is an experiment. Everybody working for it, writers and editors, are giving their services gratuitously.

The REVIEW is an experiment, not a money-maker. The important question is—can it pay for itself? Yes, if five hundred persons, interested in the prison world, will subscribe for the REVIEW at seventy-five cents, or become members of the National Prisoners' Aid Association, at one dollar, which will include the REVIEW.

Therefore, SUBSCRIBE NOW. This REVIEW is specially for prisoners' aid workers, prison officials, boards of managers, state boards, probation officers, parole officers, members of the American Prison Association and of the National Conference of

Charities and Correction, and all others interested in the treatment of the delinquent.

The officers of the Association are: E. F. Waite, President; F. Emory Lyon, Vice President; O. F. Lewis, Secretary. Executive Committee: E. A. Fredenhagen, Charles Parsons, G. E. Cornwall, A. H. Votaw, Albert Steelman, and the officers ex-officio.

Mr. O. F. Lewis, Sec'y, Date.....

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- Transcriber's Notes:

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